

trust? In *Titley v. Wolstenholme* (*d*), where the settlement contained no power of *appointment of [*232] new trustees, it was held, that as a conveyance in the lifetime of the trustee to a stranger would have been a breach of trust, the word assign could mean only a devisee taking under a *post mortem* conveyance, when the personal confidence in the trustee necessarily ceased; and consequently that the devisees had not only the legal estate, but were properly trustees within the scope of the settlor's intention.

18. *Titley v. Wolstenholme*, doubted. — This case seems to have raised some scruple in the mind of V. C. afterwards L. J. Knight Bruce, for he observed that "What he should have done if *Titley v. Wolstenholme* had come before him he need not say, nor was he sure" (*a*). And the reasoning upon which Lord Langdale proceeded is not quite conclusive, for the word "*assigns*" does not necessarily imply a devise, as it would be satisfied by holding it to refer to a tenant by the curtesy or dowress, who would be assigns in law. However, the case was referred to, without disapprobation, by Lord Cottenham (*b*), and was approved by V. C. Stuart (*c*).

19. *Hall v. May*. — In *Hall v. May* (*d*), V. C. Wood went further, and held that under a trust containing the word *assigns*, and also a power to appoint new trustees, the devisee could make a title. It was conceded that the word "*assigns*" would not have enabled a trustee to transfer the trust by act *inter vivos*, and it could not be disputed that, as the instrument contained a power of appointment of new trustees, the assigns introduced by virtue of the power would give a meaning to the word "*assigns*" without having recourse to a devise. It was therefore necessary to lay down a broader principle than that acted upon in *Titley v. Wolstenholme*, and the doctrines upon which the Vice-Chancellor proceeded

(*d*) 7 Beav. 425. See *Saloway v. Strawbridge*, 1 K. & J. 371; 7 De G. M. & G. 504, which however was the case of a mortgage.

(*a*) *Ockelston v. Heap*, 1 De G. & Sm. 642.

(*b*) *Mortimer v. Ireland*, 11 Jur. 721.

(*c*) *Ashton v. Wood*, 3 Sm. & G. 438.

(*d*) 3 K. & J. 585.